
Fairhaven C of E Primary School**Audit Date: 00/00/00****Report: Remote consultation****DPE: Stuart Lee****School member:**

1. Consultation details

The meeting was attended by: Stephine Lake and Jan Chambers

The purpose of the remote session was to gain a refocus for data protection and to update the school as to policy and documentation updates and to signpost the school to the best practice areas and updates.

The school has a governor assigned for GDPR and have started to utilise Cloud based systems i.e. Google classroom.

2. Audit walk findings

As it was not possible to complete an audit walk it was suggested the school could complete an after-school walk and compare any findings with the previous report findings. In addition the school can also use the quick reference sheet which demonstrates best practice that can be followed: <https://kb.dataprotection.education/best-practice-library/documents/drip-feeds/57-dpe-quick-reference-guide>

3. Compliance actions:

Jan confirmed that she is currently updated key data protection documentation.

- **Privacy Notice** – school signposted to and to update with the latest COVID-19 guidance or adopt the latest notice. School will also update the appendix to include all third parties i.e. Tapestry. Once complete the school will upload to the school website
- **GDPR Policy** – school signposted to and to update with the latest COVID-19 guidance or adopt the DPE latest policy. School will check to ensure the policy aligns to practice in school and any reference documents can be referred to i.e. publication scheme
- **Data Breach Procedure** – discussed disseminating again to ensure all staff understood what a data breach was and how to report this. Also discussed data breach online training (5 – 10 minute) that it would be beneficial for staff to complete
- **SAR procedure** – school to ensure key staff understand how to respond to a SAR and are familiar with the procedure.

The school also has the option of using DPE's records management policy (mentioned in the GDPR policy) or adapting documentation into guidance.

Jan will use the DPE best practice area compliance checklist and documentation to check against: <https://kb.dataprotection.education/index.php/best-practice-library/best-practice/commitment-to-compliance> The check lists can also be printed to show progress to governors.

School were shown the latest data breach and SAR best practice areas.

3.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. DPE Record of Processing (RoP) manager will also include data retention and can be used in addition to the IRMS retention schedule. Reports to show retention periods will be able to be produced from the RoP Manager.

3.2. Staff training

There are now additional training options available including a GDPR refresher module. The school can now identify specific people for specific training modules i.e. clear desk and password security, for example.

The school can use staff meetings/briefings to raise staff awareness and to bring data protection back in to focus.

Steph confirmed that they will incorporate data protection within the January Inset training.

3.3. Governance check

As there were a number of requests from schools for additional governor resources, DPE has now added a governor best practice area to the DPE website. This includes a model terms of reference and other useful documentation. The school has the option of using this to support governors and compliance.

4. Freedom of Information and Publication Scheme

The school has some information published but needs to revisit the publication scheme. As the ICO and DfE guidance differ regarding what documents should be published either, via the school website or paper copies, DPE have amalgamated the information and produced a model publication scheme. **The template for DPEs model publication scheme can be obtained from:** <https://kb.dataprotection.education/index.php/best-practice-library/best-practice/freedom-of-information> Jane confirmed that this will now be worked on.

5. Technical measures

With more staff working remotely there is never a better time than now to check technical security measures. If not already, DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources>Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire> (not discussed fully during the session)

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? How do you manage equipment that is taken off site and what is stored on this equipment? Do staff use their own devices when working remotely, if so, has best practice been communicated and have you adopted the DPE work away from school policy/guidance:

<https://kb.dataprotection.education/index.php/best-practice-library/best-practice/working-out-of-school>

6. Record of Processing (RoP) tool and data mapping

DPE will shortly complete a global clone with approximately 100 of the initial ROPs. Rather than each school completing individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and has started to form part of the basis for future remote sessions and visits. The global clone is scheduled to be completed at the start of December. You will eventually take ownership and not only use the RoP as a record of processing manager but to pull information out which supports compliance and improvements to processes.

6.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPEs methodology is to complete the risk assessment within the RoP. As the RoP manager is rolled out more guidance and support on how to complete this and take ownership will be provided. The methodology and related documents can be obtained from: <https://kb.dataprotection.education/index.php/best-practice-library/best-practice/dpias>